

25LBCV01883 25LBCV01883

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-22

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Case Number: 25LBCV01883 Hearing Date: September 22, 2026 Dept: S27

Background Facts

Plaintiff, Deborah A. Gustafson filed

this action against Defendant, American Honda Motor Co., Inc. for violations of the Song-Beverly Act, breach of implied warranty, and fraudulent inducement – concealment.

Motion for Summary

Adjudication

a.

Initial Note

Defendant's notice of motion and

separate statement do not comply with CRC 3.1350(b) and (h), which require the notice of motion to set forth each issue to be adjudicated and the separate statement to repeat the issues verbatim.

The Court finds, in connection with this particular motion, that

Plaintiff can reasonably understand Defendant is seeking adjudication of the fourth and fifth causes of action on statute of limitations grounds, and

therefore the Court will rule on the motion despite the defect. As the Court has previously admonished Defense Counsel, this defect may be grounds for denial in the future in Department S27.

b.

Analysis

Defendant moves for summary

adjudication of the fourth (breach of implied warranty of merchantability) and fifth (fraud – concealment) causes of action in Plaintiffs' complaint. Plaintiffs failed to timely file opposition papers.

Recently, in *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

Recently, in 24LBCV02791 and myriad other cases, Department S27 has admonished Plaintiff's attorney as follows:

The Court notes that there have been numerous motions for summary judgment and/or adjudication filed by Honda in various cases without opposition. The Court asks Plaintiff's attorney to dismiss any case or cause of action the plaintiff does not intend to pursue. Requiring the Court to rule on unopposed motions is not an efficient use of judicial resources.

Despite this admonishment, Plaintiff has neither dismissed the causes of action nor opposed the motion. Again, the motion is granted.

Defendant is ordered to give notice.